Bses Yamuna Power Ltd vs Delhi Electricity Regulatory ... on 30 October, 2009

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal No. 37 of 2008 & IA No. 77 of 2008

Dated : 30th October, 2009

Coram : Hon'ble Ms. Justice Manju Goel, Judicial Member
Hon'ble Mr. H.L. Bajaj, Technical Member

IN THE MATTER OF :-

BSES Yamuna Power Ltd.
A Company Registered under the
Companies Act, 1956 and having its
Registered Office at Shakti Kiran Building
Karkardooma,
New Delhi - 110 092
Through its Authorized Signatory (Mr. Arun Kanchan)
... Appellant(s)

Versus

1. Delhi Electricity Regulatory Commission
(A statutory Body of Government of NCT of Delhi)
Having its Office at Vinimak Bhawan,
C-Block, Shivalik, Malviya Nagar,
New Delhi - 110 017
Through its Secretary

2. C. P. Rai
Upbhogta hitharth Society
F-188/4, Laxmi Nagar,
Delhi - 110 092.

SH

3. Jaikishan Aggarwal
393, Kucha Bulaki Begum,
Dariba Kalan,
Delhi - 110 006.

4. S. P. Gupta

Rajinder Nagar Welfare Association
28/7, Old Rajinder Nagar,
New Delhi - 60.

5. Mr. R. N. S. Tyagi
C-9/86, Yamuna Vihar,
Delhi

6. Animesh
B-55, Shivaji Road, North Ghonda,
Delhi - 110 053.

7. Achlesh Kr. Gupta
I-4649-85, Gali No.2,
New Modern Shahdra,
Delhi - 110 032.

8. Anil Batra
Aakriti Apartments,
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Delhi - 92.

9. N. H. Badlani
Flat No. 69-B,
Dilshad Garden, Pocket-I,
Delhi - 110 095.

10. Abhikshek Sharma
AM(T)
Delhi Transco Ltd.

SH

11. Kamal Kiran Seth
Hony. Gen. Secretary
Udyog Nagar Factory Owner's Association (Regd.)
Z-101, (Opp. H-18)
Udyog Nagar, Rohtak Road,
Delhi - 110 041.

12. M. N. Bhattacharya
General Secretary
Federation of Group Housing Societies
D-403, Prince Apartments,
54, Indraprastha Ext.,
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13. Baldev Raj
General Secretary

The Society for Public Cause
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14. Ashok Gupta
Chief Convenor
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15. O. P. Sehgal
President
Federation of RWA
73-D, Pocket - III,
Mayur Vihar, Phase - I,
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16. D. M. Narang

SH
Gen. Secretary,
R-Block Welfare Association (Regd.)
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New Delhi - 110 060.

17. S. Hassan
Secretary
Federation of RWA's in East North (NE) Distt. Friend
F-56, Dwarikapuri,
Naveen Shahdara,
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18. Ashok Kumar
11/Pocket - B,
Mayur Vihar, Phase - II,
Delhi - 110 091.

19. Rakesh Kumar
174-A, Pocket-F,
Mayur Vihar, Phase-II,
Delhi - 110 091.

20. Deepak
603, Pocket - E, Phase - II,
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21. R. Bisht
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Delhi - 110 091.

22. Vice President
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E-586, Pocket - E, Phase - II,
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Delhi - 110 0091.

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23. Vijay Kumar
164-D, Pocket-F, Phase-II,
Mayur Vihar,
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219, Pocket-D, Phase-II,
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37, Pocket-D, Phase-II,
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27. Kamla
57, Pocket-D, Phase-II,
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28. Madhu Agarwal
62, Pocket-D, Phase-II,
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29. Nisha
40, Pocket-D, Phase-II,
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30. Sahil Malhotra

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156, Pocket-D, Phase-II,
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31. Shikha Saxena
54-A, Pocket-A, Phase-II,
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32. Tinku Ghosh
52-A, Pocket-A, Phase-II,
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Delhi - 110 091.

33. G. R. Arora
50-A, Pocket-A, Phase-II,
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Delhi - 110 091.

34. Asha
46-A, Pocket-A, Phase-II,
Mayur Vihar,
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35. Tarun
42-A, Pocket-A, Phase-II,
Mayur Vihar,
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36. S. Mudgil
41-A, Pocket-A, Phase-II,
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37. S. Sharma
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38. Savita Chopra
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39. M. Khan
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40. B. Nath
86-A, Pocket-C, Phase-II,
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41. Bhowan Chand Pandey
104-A, Pocket-C, Phase-II,
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42. Alka
102-A, Pocket-C, Phase-II,
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43. Krishan Book Depot
135-A, Pocket-C, Phase-II,
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44. Madhu Handa
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45. Shashi Bansal
109-B, Pocket-C, Phase-II,
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46. Archana Chandra
14-D, Pocket-B, Phase-II,
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Delhi - 110 091.

47. Rama Arumughan

15-D, Pocket-B, Phase-II,
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Delhi - 110 091.

48. Satyajit Mohanty
13-D, Pocket-B, Phase-II,
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Delhi - 110 091.

49. Nitin Aggarwal
16-B, Pocket-B, Phase-II,
Mayur Vihar,
Delhi - 110 091.

50. Sandeep Singh
20-B, Pocket-B, Phase-II,
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51. P. Asha
17-B, Pocket-B, Phase-II,
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98-A, Pocket-B, Phase-II,
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91-A, Pocket-B, Phase-II,
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85-A, Pocket-B, Phase-II,
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58. Meirn Lawrence
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59. Meena Bindal

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92-A, Pocket-B, Phase-II,
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60. Rajiv Garg
93-A, Pocket-B, Phase-II,
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61. Manmohan
96-A, Pocket-B, Phase-II,
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62. Dhurv Arora
106-A, Pocket-B, Phase-II,
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63. Lata Jain
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72. Prof. R. P. Garg
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73. K. V. Panicker
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74. A. P. Handa
General Manager (Fin.)
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Office of the Executive Director
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75. S. N. Tricycle Industry
300, Industrial Area,
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76. Vishvakarma Tricycle Industry
291, Industrial Area,
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77. Laxmi Tricycle Industry
312, Industrial Area,
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78. Krishan Lal
RWA (L) Pocket Dilshad Garden,
L-136-C, Dilshad Garden,
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79. B. Singh
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83. M. K. Jain
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84. K. A. Sarma
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SH
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85. Ravi Chadha
143, FIE,
Patparganj,
Delhi - 110 092.

86. I. S. Bedi
115, FIE, Patparganj,
Delhi - 110 092.

87. Alok Narula
514, FIE, Patparganj,
Delhi - 110 092.

88. Gyan Narula
514, FIE, Patparganj,
Delhi - 110 092.

89. Manoj Sharma
160, FIE, Patparganj,
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90. O. P. Mittal
68, FIE, Patparganj,
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91. Sunil Puri
18, FIE, Patparganj,
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92. Kuldip Jain
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93. Tara Chand
B-21, DSIDC Complex, FIE,
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94. Sunil Kapoor
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96. Sanjay Gaur
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97. R. K. Kachru
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98. K. R. Mishra
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99. Ashok Sharma
19, FIE, Patparganj,
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100. C. M. Aggarwal
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101. S. N. Mittal
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102. Bhupinder Narang
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108. Ram Lalit
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27/480, Trilok Puri,
Delhi - 110 091.

109. Ram Nath Sant
Govt. Pensioners RWA
27/480, Trilok Puri,
Delhi - 110 091.

110. S. N. H. Zaidi
Govt. Pensioners RWA
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116. Rajesh Gupta
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117. Sh. Ashok Dhall
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118. V. K. Aggarwal
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119. Rakesh Kr. Jain
478, FIE, Patparganj,
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120. Vijay Kr. Maini
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121. Mukesh Anand
267, FIE, Patparganj,
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122. N. L. Nagpal
60, FIE, Patparganj,
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123. Omkar Nath Gupta
278, FIE, Patparganj,
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124. Mahinder Kumar
131, FIE, Patparganj,
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125. Satyender jain
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126. K. K. Anand
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127. Anuj Goel
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128. Kuldeep Chand Jain
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129. Manoj Bhargav
513, FIE, Patparganj,
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130. Sarvajit Singh
295, FIE, Patparganj,
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131. M. Javed
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132. R. L. Raheja
A-7, DSIDC Complex,
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133. Sunil Behal
488, FIE, Patparganj,
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134. Sudhir Gupta
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135. Mohan Singh Saini
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136. Vivek Bagga
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137. R. R. Sharma
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138. Sanjay Rastogi
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SH
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139. M. L. Jain
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141. Y. K. Sharma
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142. R. C. Gupta
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143. President
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144. N. K. Sharma,
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145. C. S. Bedi
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146. M. K. Oberai
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148. Raghu Nayyar
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149. Deen Dayal Sharma
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Mr. S. K. Kapur,
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Mr. Raghu Nayyar
Mr. R. N. S. Tyagi
Mr. A. K. Datta
Mr. Fanish K. Jain

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Mr. Manjit Singh Ahluwalia
Mr. Jaydayal Singh
Mr. S. K. Maheshwar
Mr. Jagadish Lal
Mr. Sarbajit Roy
Mr. A. Azeez
Mr. Ravinder Singh
Mr. Tara Chand
Mr. Vivek Bagga
Mr. O. P. Mittal
Mr. Sanjay Rastogi
Mr. Jai Kishan Aggarwal
Mr. Ram Lalit
Mr. Ram Nath Sant
Mr. S. N. H. Zaidi

JUDGMENT

Justice Manju Goel, Judicial Member The BSES Rajdhani Power Ltd. the appellant in appeal No. 36 of 2008 and BSES Yamuna Power Ltd. appellant in the present appeal No. 37 of 2008 challenged the tariff order of the Delhi Electricity Regulatory Commission, arrayed as respondent No.1 in the two appeals, determining the aggregate revenue requirement for the FY 2008 to 2011 and distribution tariff for the period 01.03.08 to 31.03.09. The two appeals raise the same issues. The challenges to the two impugned orders, both dated 23.02.08, are APTEL, New Delhi Page 24 of Appeal No. 37 of 2008 and IA No. 77 of 2008 SH also similar. We have decided the appeal No. 36 of 2008 vide our judgment dated 06.10.09.

02) Nonetheless we had invited the parties to make their submissions on any issue which may be different in appeal No. 37 of 2008. The learned counsel for the appellant mentioned the issues of R&M expenses and A&G expenses. The appellant's grievance is that increased consumption has not been considered in granting A&G expenses. Mr. Haksar appearing for the Commission stated that the Commission has already contended that the appellant would be free to take any new initiatives in the MYT period provided such new initiatives are justified on cost benefit analysis. In other words, the Commission is willing to consider additional expenditure on new initiatives during the MYT period if the new initiatives are found to be justified. New initiatives also include the initiatives that are needed to cope with the increased consumer base. This is sufficient to take care of the appellant's grievances. This issue has been dealt with in the same manner in our judgment in appeal No. 36 of 2008

03) So far as R&M expense is concerned we found that the Commission has determined the 'k' factor at 3.7% as the relationship between the gross fixed asset and R&M expenditure which is not less than what was prayed for by the appellant. The APTEL, New Delhi Page 25 of Appeal No. 37 of 2008 and IA No. 77 of 2008 SH appellant had projected the R&M at 3% of GFA and 7% per annum increase. Thus the 'k' factor of 3.7% determined by the Commission cannot be a cause of grievance for the appellant. Therefore, we need not make any further order on R&M in this appeal.

04) All the issues involved in the present appeal have been settled in appeal No. 36 of 2008. All the dispensations given in our judgment in appeal No. 36 of 2008 shall apply in appeal No. 37 of 2008 and the judgment in appeal No. 36 of 2008 has to be read as judgment deciding the issues involved in appeal No. 37 of 2008.

05) The appeal stands disposed of accordingly.

06) With this the IA also stands disposed of.

07) Pronounced in open court on this 30th day of October, 2009.

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( H. L. Bajaj )                                          ( Justice Manju Goel )
Technical Member                                            Judicial Member



Reportable3 / Non-reportable



APTEL, New Delhi                                                        Page 26 of

                      Appeal No. 37 of 2008 and IA No. 77 of 2008

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